
Considering Computer Games as a Replacement for Thought Experiments in Ethics I: The Problem

Midterm Essay for PHIL 216, instructed by Hülya Şimga & Nalan Saraç

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Last Revised: March 21, 2016

Introduction

I find a certain practice in philosophy particularly problematic, namely that of referring to "thought experiments", or "hypothetical situations" when constructing arguments. The usage of such thought experiments is often justified by saying that they are based on a logical or physical possibility. A thought experiment is said to be **based on a logical possibility**¹ if there is no logical problem to think of it or imagine it happening, while a thought experiment is **based on a physical possibility** if not only there is no logical problem, but also it can occur as an observable physical phenomenon as far as the latest accepted physical laws are concerned. An alligator shoplifting a pack of chewing gums from the local market is a logical possibility, for instance (as I can certainly think of one, in a comedic fashion), while to turn this into a physical possibility we need to add some further details, e.g., that the owner of the market has a neurological condition that makes him see shoplifters as alligators, and that we are hearing his statement on what happened (also in a comedic fashion, come to think of it).

Even though one comes across thought experiments in a variety of topics in philosophy (as well as in some other disciplines), to make the treatise concise I will focus on a particular problem, called the trolley problem, that is especially popular among philosophers of ethics. Further, I will be using Aristotelean ethics when approaching to the trolley problem, as this theory of ethics seems to be the most apt to deal with making decisions in real life, that is in urgency. The trolley problem is usually attributed to Foot, and over the years variants of it have been conjured by many others², each of which is tailored to test the stability of some philosophical theory under extreme cases. That being said, only reciting two thought experiments is sufficient for my purposes:

Suppose that [**judge**] a judge or magistrate is faced with rioters demanding that a culprit be found for a certain crime and threatening otherwise to take their own bloody revenge on a particular section of the community. The real culprit being unknown, the judge sees himself as able to prevent the bloodshed only by framing some innocent person and having him executed. Besides this example is placed another in which [...] [**trolley**] he is the driver of a runaway tram which he can only steer from one narrow track on to another; five men are working on one track and one man on the other; anyone on the track he enters is bound to be killed. [...] [**trolley problem**] The question is why we should say, without hesitation, that the driver should steer for the less occupied track, while most of us would be appalled at the idea that the innocent man could be framed.³

¹I use **bold** to signify the word or phrase that is being defined inline or in quotation, while sans serif is reserved for the names of thought experiments.

²[Foo67, Kam89, Tho85]

³[Foo67, p. 2]

To clarify notation, trolley is a thought experiment, while the trolley problem is an ethical problem generated by the thought experiments trolley and judge. My claim in this paper is that this generation is unjustified. To be more precise, I claim that using thought experiments such as trolley, is problematic on two levels. First, one is required to think of further details in order to make sense of them, which either renders them to be too specific to be of any philosophical substance, or makes it inefficient to use them in philosophical arguments, as they are mainly used to isolate a particular side of a bigger problem. Second, as these thought experiments are engineered so that they are ethically perplexing and there is a built-in urgency to make a decision, how they are solved prospectively is almost completely irrelevant to ethics, as the retrospective aspect of ethics is far more prominent than its prospective aspect. The former I call the **problem of efficient isolation** and the latter the **problem of temporal urgency**. Nevertheless I acknowledge that there is some use for thought experiments in philosophy, and we can salvage some of their utility once we find a solution to the problems of efficient isolation and temporal urgency. In the second part of this essay I shall further argue that there is some hope for using thought experiments in ethics, viz. by basing them on a gameplay possibility. For this I will make use of some machinery from game studies⁴. But before offering a remedy one should justify the existence of the problem.

Outline of Aristotelean Ethics

First let us specify what committing to Aristotelean ethics entails. Aristotelean ethics takes as its kernel being a virtuous person, i.e. according to Aristotelean ethics being good is being virtuous, hence Aristotle is generally considered to be a virtue ethicist. This requires one to have a better understanding of how to be virtuous, though this is by no means on a theoretical level: our primary concern is *becoming* good, rather than *knowing* what good is,

for we are inquiring not in order to know what virtue is, but in order to become good, since otherwise our inquiry would have been of no use[.]⁵

For Aristotle there are two kinds of virtue: intellectual and moral. Obviously we are interested in the latter⁶. Moral virtues are developed by habit, that is to say, one becomes virtuous with respect to some particular virtue by acting virtuous with respect to that virtue. In this sense, being virtuous is a craft of sorts, like the arts, as virtues come first by activity, though practicing is a necessary condition for being virtuous only, and not a sufficient one. To be exact, there are three conditions to act virtuous:

Knowledge (Practical Wisdom) The candidate must have (at least some idea of) the knowl-

⁴This will be my final essay for PHIL 216.

⁵[Ari98, p. 37]

⁶It is safe to assume for this paper that it is obvious that these are distinct, but this might require some justification in general, e.g. consider the following example Aristotle gives for making a point about moral virtues: "to find the middle of a circle is not for everyone but for him who knows"⁷.

edge of how to practice in accordance with a particular virtue. I believe Aristotle would take this knowledge to be developed via right education: "we ought to have been brought up in a particular way from our very youth, as Plato says, so as both to delight in and to be pained by the things that we ought; this is the right education"⁸. Observe that for Aristotle becoming virtuous is a process of developing the right habits, instead of a matter of recollection, so that the so-called Meno's paradox is avoided. Acknowledging this also allows us to differentiate actions that are bad in themselves, such as adultery, and consequently avoid the problems of "bad forms" from Platonic philosophy⁹.

Conscious Choice (Practice) The candidate must choose to do the virtuous acts and choose them for the sole reason that they are virtuous.

Stable Character The actions of the candidate must stem from his stable character.¹⁰

Aristotle declares that virtues are to be found in souls, and since things that are found in the soul are either passions, or faculties, or states of character, it is useful to determine to which category virtues belong. By **passions** we mean "the feelings that are accompanied by pleasure or pain", by **faculties** we mean the capacities of having passions, and by **states of character** we mean whether we act well or badly with respect to our passions. The criterion to distinguish virtues as states of character is immediate: it makes sense to talk only about virtues and vices whether they are praiseworthy or blameworthy, while one does not praise or blame passions, nor the capacities to have passions¹¹. Furthermore, when speaking of passions only one is considered to be "moved" in a particular way, while when speaking of virtues only one is considered to be "disposed" in a particular way. As dispositions can involve three things, namely, excess, deficiency and mean, it is now clear that virtue is related to the mean:

[Virtue], then, is a state of character concerned with choice, lying in a mean, i.e. the mean relative to us, this being determined by a rational principle, and by that principle by which the man of practical wisdom would determine it.¹²

I have claimed earlier that Aristotelean ethics seems suitable to make actual decisions, instead of contemplation. This claim is henceforth justified, as at the locus of Aristotelean ethics there is nothing but action that is to be classified as virtuous or not. This point is further emphasized by Aristotle himself:

[T]he agents themselves must in each case consider what is appropriate to the occasion, as happens also in the art of medicine or of navigation.¹³

⁸[Ari98, p. 38]

⁹By problems of "bad forms" I mean the ones such as "does mud have a form?" or "is the form of dirt the most perfect kind of it or the worst, so that there are negative forms as well?". For Aristotle you can't be good at a thing that is bad-in-itself. Though again it might be argued further justification of the "bad-in-itself"s and the "good-in-itself"s is required.

¹⁰[Ari98, p. 39]

¹¹[Ari98, p. 39]

¹²[Ari98, p. 40]

¹³[Ari98, p. 38]

Moreover, again keeping in mind that the only three things a disposition can be involved with are excess, deficiency and mean, and that the virtuous act is nothing but steering away from excess and deficiency and towards the mean, we see any action as *a balancing act on a sphere of actualization*:

[N]ot only are the sources and causes of their origination and growth the same as those of their destruction, but also the sphere of their actualization will be the same.¹⁴

Seeing any action as a balancing act on a sphere of actualization also includes an effective method of becoming virtuous: one is to try to steer away from the two extremal vices, viz. excess and deficiency, and over time one is to steer away more, until there is no more space to be steered into¹⁵:

Hold the ship out beyond that surf and spray.¹⁶

Hence we obtain the final piece of Aristotelean ethics I shall be using to criticize the trolley problem, namely the fact that ethics is more retrospective than it is prospective. In other words, prospection makes one to correct his way by looking at the end (i.e. the mean he tries to steer into), while retrospection makes one to correct his way by looking back and see what he did earlier and *just a moment ago*. This is the way of ethics by habituation. Note that this is not to say that ethics is not prospective, which is cited as the first condition to act virtuous. But in actuality, and more importantly, one has to be choosing, and choosing so that his disposition is not excessive or deficient¹⁷. This is to say that the second condition is more important than the first one. As a final note it should also be remarked that it is natural that ethics turns out to be more retrospective than prospective. Indeed, this is the case due to our very conception of a virtue, as the criterion of a virtuous act is whether it is blameworthy or praiseworthy, and blaming or praising an act only makes sense retrospectively. When considering his honest hard work, a student is not praised because he is going to take a test, nor is he praised because he is taking a test at the moment. He is praised only after he is confirmed that he did everything he could before and during the test to get a good grade¹⁸.

The Problem with the Trolley Problem

We can now apply the machinery from Aristotelean ethics to the problem at hand. Recall that I declared two problems with the trolley problem:

¹⁴[Ari98, p. 38]

¹⁵One has to fail first, and then fail more absolutely to fail, so to speak.

¹⁶[Ari98, p. 42]

¹⁷[Ari98, p. 42] For the record, Aristotle also claims that one should "dismiss pleasure", which I don't agree with completely. Instead I would say one should manage or manipulate pleasure. That said, it might also be the case that what I understand by "pleasure" also includes what Aristotle would call "taste" or "the ability to be delighted in something" as cited in what right education ought to develop.

¹⁸On top of these if it turns out that he also did these things in the right way determined by the tester, then it is safe to expect him to get a good grade.

I (Problem of Efficient Isolation) To give an example, it is very unlikely for a person reading this essay to ever be in a situation where he/she has any power over the route of a trolley whose roads are so badly guarded that there is a chance of running over workers. For sure, such a situation can happen, after all trolley is based on physical possibility, but turning it into a working example for philosophy will require to think of further ethical questions. For instance, suppose (**hungry trolley**) I have not eaten in a week and so am desperately in need of some cash, and the company who owns the railroads and the trolley is willing to hire me, who has no knowledge on how to operate a trolley, as a trolley driver. The only condition the company declares is this: "We don't actually keep track of the workers on the railroad, since it is just cheaper to pay compensation to the families of the dead workers and hire new workers. You must conform to this policy.". Is it permissible for me to accept the job? In the first example, trolley is seen to present no motivation or necessity to be committed to consider, while in the second example, it becomes too big of a bite to chew, even for the whole career of a novelist, let alone a philosopher¹⁹.

II (Problem of Temporal Urgency) This problem is evident once we reveal I. For trolley, even supposing that I am a human that has normal eyesight (I could have bad eyesight, and lost my eyeglasses) and that I am an experienced trolley driver (I could be a rookie), so that I am constantly on the lookout of the condition of the trolley and of the road, I have very little time to fully grasp the situation, think about what to do, and act accordingly (keep in mind that I make sure either one of five people die in the coming minutes). Likewise, for judge, supposing I am a judge (who has taken appropriate education to be a judge, whatever that is), I have again a limited amount of time, which implies urgency given the resources and manpower I have at my service, to evaluate how seriously the rioters should be taken, how much of my resources should I reserve for suppressing the rioters and how much for actually finding the culprit etc., then to give orders, and supposing everything goes according to my plan, to give a final decision.

Employing Aristotelean ethics, we come across seven problems, some of which further emphasize I and/or II:

A (Becoming Virtuous × Knowing Virtue) In light of I, any argument based on a physical thought experiment renders the argument to be theoretical (as the situation considered is hypothetical), instead of practical, what ethics is supposed to be about.

B (Activity × Potentiality) Physical thought experiments pose themselves to be some kind of activity, but really they can't go further than being shadows of potentiality. Answering questions like "would you shoot a child who is holding a hand grenade?" does not create

¹⁹I would not be surprised if there were interpretations of the whole works of writers who did nothing but specify a physical thought experiment his whole life.

habit. Of course I am assuming that asking these questions is not part of a torture and/or brainwashing procedure, in which case, again, philosophy would not be of any concern I would predict.

C (Virtues $\not\subseteq$ Passions) This can be seen as a terminological point, which is primarily against Thomson, who uses phrases such as "how I feel" or "people feel" in her paper at least sixteen times²⁰. However above we have established that virtues are not passions, rather they are states of character. In this respect, even if this is a terminological issue, it is not a minor one.

D (Agents Choose) As we have cited above, it is the agents themselves who are to consider what is the right thing to do in a particular situation. Taken at face value, one who is not a trolley driver has nothing relevant to say in trolley, and even the trolley drivers would have a say only in the short interval of time when it is possible to change the direction of the trolley. A similar argument goes for judge. It might be argued that we can still relate to people in dire situations as depicted in trolley and judge, to which I would reply that, even if we could, I would rather save my mental power for the real ethical problems that I have. In fact, I would further claim that advocates of building ethical theories out of thought experiments are either escaping from making decisions or they are blind to the urgency of making decisions that are relevant to their actual lives²¹, which means to get stuck in theory, or to avoid activity.

E (Sphere of Actualization) Above we established an action as a balancing act on a sphere of actualization. Unless this sphere is well-formed, it is futile to think about distinguishing the mean from the excess and from the deficient. And we have witnessed that thought experiments don't make well-formed spheres of actualization.

F (Retrospective $\times$ Prospective) Ethics is more retrospective rather than prospective. In light of II, thought experiments only imitate retrospection, while by their own construction as "hypothetical" they become prospective, and hence of very little practical value, if any, in ethics. Further, how these thought experiments are approached to does not matter, as what they really represent, i.e. the extreme situation(s) we are bound to face at some point in our lives, will catch us off-guard. One can surely take certain precautions in order to prevent particular thought experiments from happening, but such physical thought experiments are virtually infinite as are the possible maladies one might come across. Observe that here the third condition of holding a stable character comes in play as well. Finally, it does not make sense to either blame or praise a person if he decides to not turn or turn the trolley in trolley,

²⁰[Tho85]

²¹I know of such people, though they don't go as far as advocating thought experiments explicitly. To the contrary, in fact.

but it would make sense to say "Poor driver, he only had twenty seconds to make the hardest decision anyone he knows would be obliged to make in his/her whole life!". Likewise in judge, it makes no sense to praise or blame the one who decides to do something in his power which is legal or illegal, but it would make sense to say "Wow, apparently this judge has never watched a crime movie since he does not know that framing an innocent never works!"

G (Perception) As the effective method to become virtuous starts first with avoiding excess and deficiency, and then precisizing the mean, how good an approximation of the mean he steers into changes from being praiseworthy to blameworthy depending on how the particular situation is perceived²². However thought experiments cripple perception.

As a final note observe that D, E and G emphasize I, F emphasizes II, and A and B emphasize both I and II.

Conclusion

I have argued that as thought experiments are based at best on physical possibility, utilizing them in ethical arguments comes at a big prize, namely the problems of efficient isolation and temporal urgency. But there are times when they are actually useful, and they are actually very versatile for philosophy, so versatile, in fact, I have used one against their usage (hungry trolley). Moreover in general I would like to preserve the possibility to refer to a thought experiment that goes like this: (**such meta**) Suppose you have read so far into this essay, and you believe that the problem I point out is not that big of a problem. Should you be obliged to go on to JSTOR, [search for "trolley problem"](#), and see how many papers there are that does *not* point out the ridiculousness of this whole thing?²³

Thus I refrain from claiming that they should be completely banned from philosophy. Indeed, as soon as the problems of efficient isolation and temporal urgency are remedied I believe we shall arrive at some possibly new form of thought experiments which will be more suitable for philosophy. This is to be expected, since the problems I pointed out are due to a lack of regulatory criteria and proximity to activity. Hereby we have a legitimate problem to solve.

²²[Ari98, p. 42] "But up to what point and to what extent a man must deviate before he becomes blameworthy it is not easy to determine by reasoning, any more than anything else that is perceived by the senses: such things depend on particular facts, and the decision rests with perception."

²³For the record, I myself don't think the problem of thought experiments is a big one, though the solution I will present later will be nifty, or so I anticipate.

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